



SAS Distributor Policies and Procedures

September 2023

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PURPOSE

This SAS Distributor Policies and Procedures document (“Policy”) provides detailed information related to the execution of Distributor and Tier Two Reseller Agreements. This document is intended to be used in conjunction with the Opportunity Registration requirements and the terms and conditions set forth in the relevant agreements. Capitalized terms that are not defined in this Policy are defined in the applicable agreements.

SAS Distributor Policies and Procedures are subject to change. For any questions regarding the information provided in this document, please contact your Partner Account Manager, or send questions to Global Channel Operations via email at partners@sas.com

AUTHORIZED SALES TERRITORY

The authorized territory will be listed in the Distributor Adopter Agreement signed by SAS and Distributor Affiliate party. Details of country coverage, please refer to this link <https://partners.sas.com/distributor-territory-and-country-coverage>

AUTHORIZED ACCOUNTS

In addition to the other limitations provided in the relevant agreements, the Distributor and Tier Two Reseller can distribute and resell into any End User account except those accounts listed at [SAS List of Sales Direct Accounts](#). that SAS exclusively assigned to itself or a third party. SAS may unilaterally update Named Account List.

AUTHORIZED RESELL OFFERINGS

The SAS portfolio of Offerings including Software, Hosted Managed Services, CI360, and Training/Education are eligible for resale per the applicable agreements.

The Eligible Offerings are listed in - <https://partners.sas.com/sell-and-showcase/distributor-eligible-offerings>.

To be authorized to resell any SAS Offerings, the Distributor and Tier Two Reseller must register the opportunity using the Opportunity Registration Form (ORF) found on PartnerNet and have that registration approved by SAS.

DISTRIBUTOR DISCOUNTS

Distributor will receive the following discount off the current SAS Standard Applicable Fees at the time of SAS Quotation for Software, CI360, Hosted Managed Services and Training/Education Offering for Annual Deals.

Discount may be different based on region, offering, and transaction type (Initial Period/Renewal Period).

Regions	Software Offering		CI360 Offering		Hosted Managed Services	Training/Education Offering
	Initial Period	Renewal Period	Initial Period	Renewal Period	Annual	Annual
US and Canada	25%	15%	20%	15%	15%	15%
Latin America and Caribbean	28%	18%	23%	18%	18%	18%
Europe	27%	17%	22%	17%	17%	17%
Asia Pacific / Japan	28%	18%	23%	18%	18%	18%
META	28%	18%	23%	18%	18%	18%

For Software in a Committed Multi Year engagement where Distributor commits to license Software for a 3 Year non-cancellable Committed Period, special incentive discount will be applied depending on the chosen payment commitment. The discount will be applied on the committed period (Initial Period and Renewal Period)

Committed Period engagements are limited to 3 years only. It should be communicated when Distributor request a Quote from SAS per the End User Transaction Process as described in the relevant agreements. After the end of Committed Period, the subsequent renewal (Year 4) will be discounted based on the standard discount table below. Any changes to the contractual agreement will require review of the deal and applicable discounts may change.

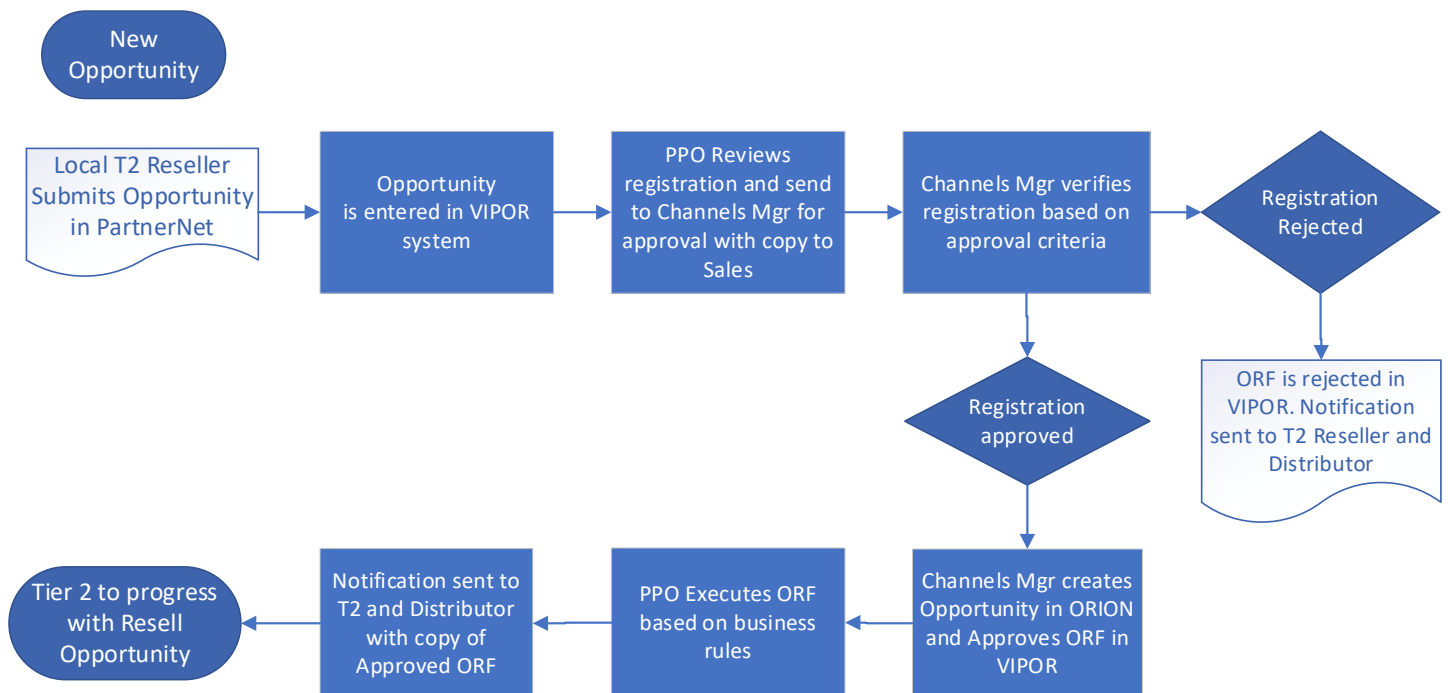
	3 Year Committed Deal – Paid Upfront			
Regions	Software Offering		CI360 Offering	
	Initial 3 Year Discount	Subsequent 3 Year Renewal Discount After Year 3	Initial 3 Year Discount	Subsequent 3 Year Renewal Discount After Year 3
US and Canada	25%	20%	20%	20%
Latin America and Caribbean	28%	23%	23%	23%
Europe	27%	22%	22%	22%
Asia Pacific / Japan	28%	23%	23%	23%
META	28%	23%	23%	23%

	3 Year Committed Deal – Annual Flatline			
Regions	Software Offering		CI360 Offering	
	3 Year Annual Discount	Subsequent Annual Renewal Discount After Year 3	Initial 3 Year Discount	Subsequent 3 Year Renewal Discount After Year 3
US and Canada	20%	15%	20%	20%
Latin America and Caribbean	23%	18%	23%	23%
Europe	22%	17%	22%	22%
Asia Pacific / Japan	23%	18%	23%	23%
META	23%	18%	23%	23%

Example of Software **Annual** and **Multi Year** Discount Calculation: *USA Opportunity*

Annual (US)			3 Year Upfront			3 Year Flatline Annual Payment		
Initial Year Discount	25%		Initial 3 Year Discount	25%		Initial 3 Year Discount	20%	
Renewal Fee	15%		Renewal Fee	20%		Renewal Fee	15%	
Estimated Annual Uplift	5%		Estimated Annual Uplift	5%		Estimated Annual Uplift	5%	
Unit Price	\$10,000		Unit Price	\$31,525		Unit Price	\$31,525	
Year	Unit Price	Distributor Buy Price	Year	Unit Price	Distributor Buy Price	Year	Unit Price	Distributor Buy Price
Year 1	\$10,000	\$7,500	Year 1	\$31,525	\$23,644	Year 1	\$10,000	\$8,000
Year 2	\$10,500	\$8,925	Year 2	\$0	\$0	Year 2	\$10,500	\$8,400
Year 3	\$11,025	\$9,371	Year 3	\$0	\$0	Year 3	\$11,025	\$8,820
Year 4	\$11,576	\$9,840	Year 4	\$33,101	\$26,481	Year 4	\$11,576	\$9,840
Year 5	\$12,155	\$10,332	Year 5	\$0	\$0	Year 5	\$12,155	\$10,332
Year 6	\$12,763	\$10,848	Year 6	\$0	\$0	Year 6	\$12,763	\$10,848
Total Value	\$68,019	\$57,816	Total Value	\$64,626	\$50,125	Total Value	\$68,019	\$56,240

OPPORTUNITY REGISTRATION AND APPROVAL PROCESS



All resell opportunities must be registered through PartnerNet. When a Tier Two Reseller decides to pursue an end user opportunity with a Distributor, Tier Two Reseller will submit an Opportunity Registration Form (“ORF”) via SAS PartnerNet to document and identify the opportunities with potential End Users. SAS will make reasonable effort to approve or reject all registrations within 5 business days and will notify the Distributor and Tier Two Reseller in writing of the decision. In the event the opportunity registration is rejected, SAS will provide the reason for the rejection and may suggest course of action, if appropriate.

More than one Tier Two Reseller may submit an ORF for the same opportunity. SAS will provide a Quotation to the Distributor for each one of these Opportunities.

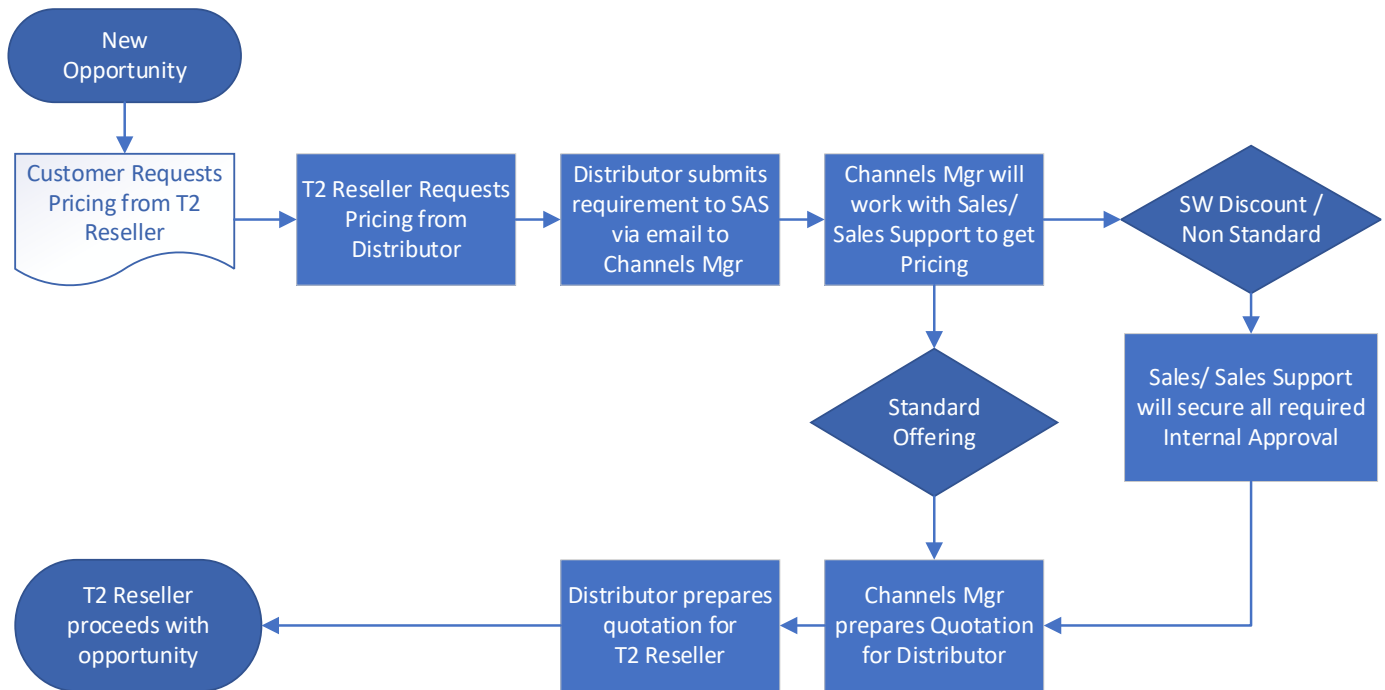
For opportunities under Territory USA, Canada, and Latin America, only the first ORF will be approved by SAS and Distributor will be provided a Quotation only for the benefit of the Reseller which submitted the first ORF for the same opportunity, except if the ORF is related to a Passive Sales opportunity. The same opportunity means an opportunity for the same End User and the same Offerings.

An approved ORF is valid for 12 months from execution date unless stated otherwise in the Distributor/Reseller agreement or on the executed ORF. Should the opportunity not close during this period, the Reseller is responsible for submitting another ORF to request an extension. The extension is at the sole discretion of SAS and the period of validity may be up to, but no more than, an additional 12 months.

ORF validity does not apply to pricing quotation. As per Distribution Agreement, all price quotes are valid for 90 days. Distributor should reach out to SAS for an updated pricing if the opportunity is not closed within that timeframe.

SAS may, at its discretion, reject and remove a Reseller from a previously approved opportunity if the Reseller company ownership changes or if SAS or the Distributor/Reseller terminates the Distributor/Reseller contract. SAS will make reasonable efforts to cooperate with the Distributor/Reseller before taking any action.

REQUESTING A PRICING QUOTE



All pricing requests (Quote requests) will be done by the Distributor to SAS. The Tier Two Reseller should reach out to their SAS Distributor to obtain Distributor Offer to Tier Two Reseller. An approved Opportunity Registration Form must be in place before any pricing (Quote) request is made to SAS.

All quotes, RFPs and proposals must include a term of validity that does not exceed ninety (90) days from the date of issuance.

All transaction and pricing will be in **USD**, using SAS Applicable Fees in the USA.

To obtain a Quote, the Distributor/Reseller will make every effort to make sure the opportunity is BANT qualified and will submit complete information to SAS as applicable.

- Is this a new or existing SAS Customer Account?
- Is this new license or upgrade?
- What is the expected License Begin Date (LBD)?
- List of Offerings End User is interested in purchasing
- Quantity for applicable pricing metric
- Do you have an active SAS Sales Opportunity Number (SSO)?

PRICING AND COMPETITIVE DISCOUNTS

SAS will provide pricing to the Distributor based on standard SAS US Standard Applicable Fees. The net amount the Distributor owes SAS is calculated based on Standard Applicable Fees minus the relevant Distributor discount. End-User pricing is at the sole discretion of the Tier Two Reseller.

In a competitive situation where additional SW discount is being requested, SAS written approval must be secured prior to making any commitment to the End User. The approved discount amount will be reflected in the SAS Quotation to the Distributor.

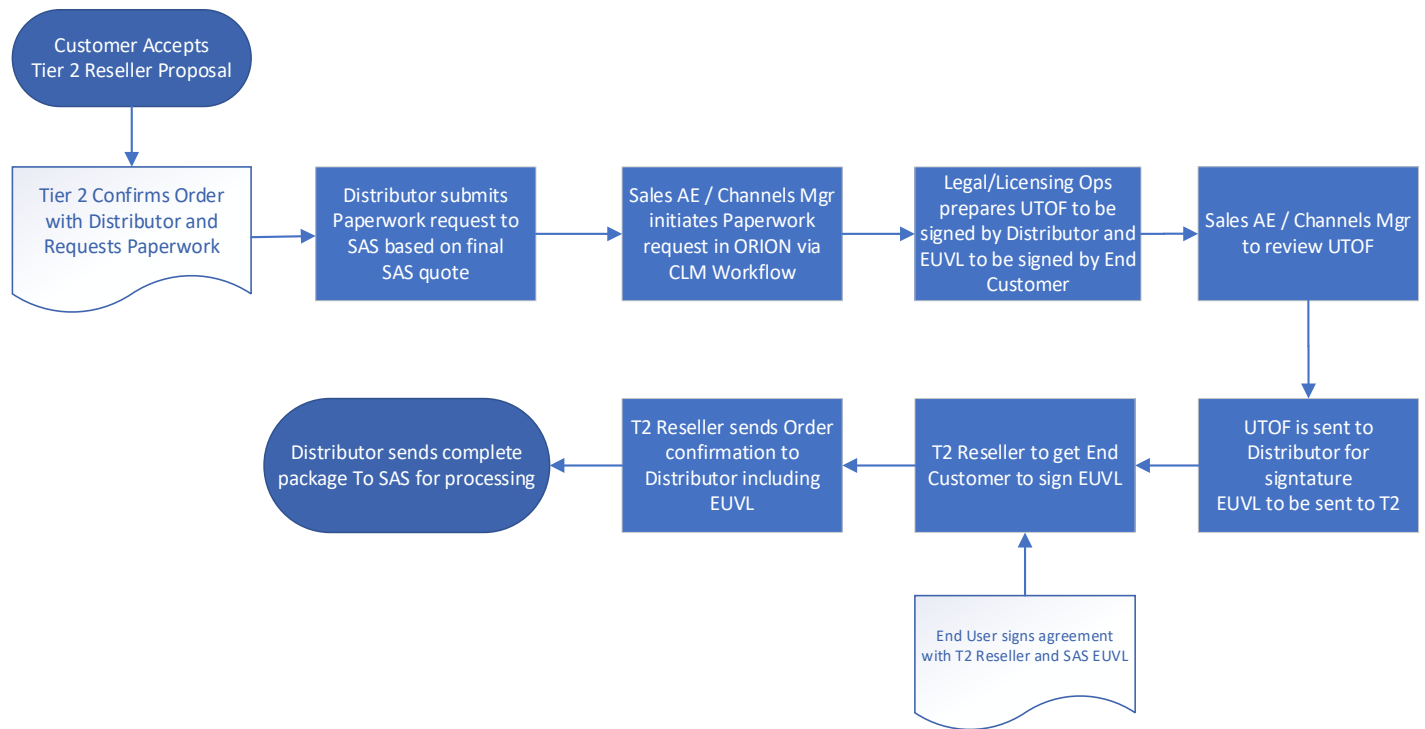
Standard Distributor discounts will be protected for any additional Software discount up to 50%. SAS reserves the right to adjust the overall Distributor discount if the requested additional Software discount exceeds 50%. This will require additional review and approval by SAS.

Example Discount:

SAS Approved Discount			Channel Incentive			
Standard Fee	Approved Additional Discount	Standard Fee Less Approved Discount	Distribution Discount* %	Distribution Discount \$	Distributor Buy Price	Compound Discount
10,000.00	10%	9,000.00	25%	2250.00	6,750.00	33%
10,000.00	20%	8,000.00	25%	2000.00	6,000.00	40%
10,000.00	30%	7,000.00	25%	1750.00	5,250.00	48%
10,000.00	40%	6,000.00	25%	1500.00	4,500.00	55%
10,000.00	50%	5,000.00	25%	1250.00	3,750.00	63%

*May be different based on region

CONTRACTING PROCESS



When a Distributor/ Tier Two Reseller secures an EUA from the End User to provide the proposed SAS Offerings, the Distributor will work with their SAS contact to secure the appropriate SAS contracts as described in the relevant agreements. These documents will be provided to the Distributor by SAS Legal and Licensing Operations Department.

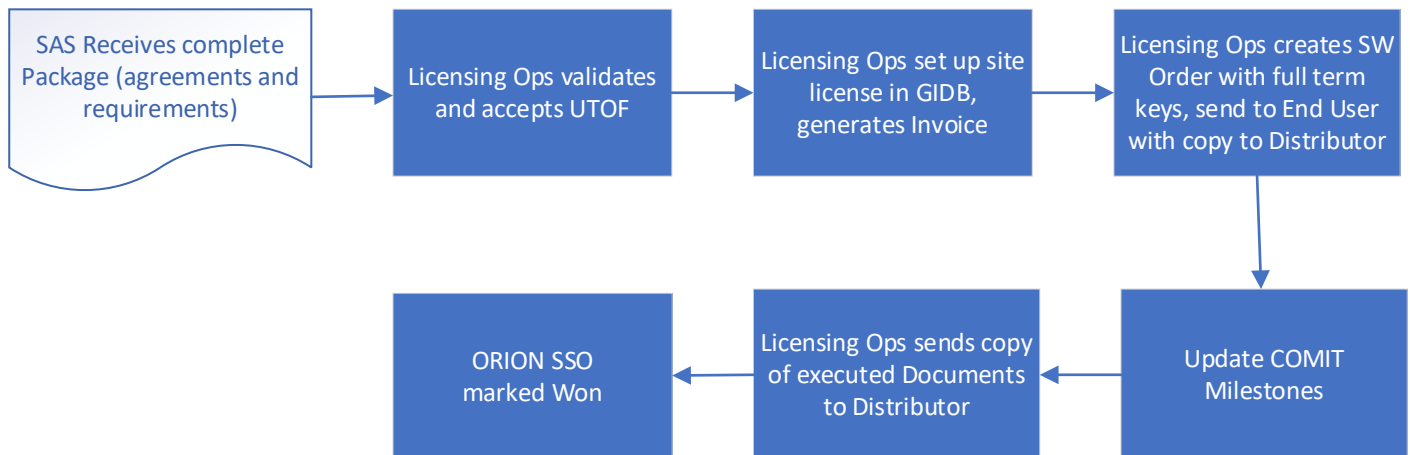
Distributor will provide the complete information that will be required to complete the documents, this includes Distributor contracting entity, Distributor Transacting Affiliate, Distributor Authorized Signatory, Tier Two Reseller Entity, Tier Two Reseller Contact Information, End User Contact Information.

The SAS documents to be provided will include SAS Universal Term Order Form (UTOF) that Distributor will need to sign. This document will be sent via DocuSign and will require electronic signature. The End User Verification Letter (EUVL) that will be sent to Distributor to be forwarded to the Tier Two Reseller to have their End User sign.

EUVL (End User Verification Letter)

Distributor will submit to SAS by means of electronic communication, an EUVL in the format as prescribed in the Distributor Agreement, signed by End User for all new transactions and renewal transactions. SAS may terminate the applicable Order Form if SAS does not receive the EUVL in a timely manner or if it is inconsistent with the Order Form.

ORDER FULFILLMENT PROCESS



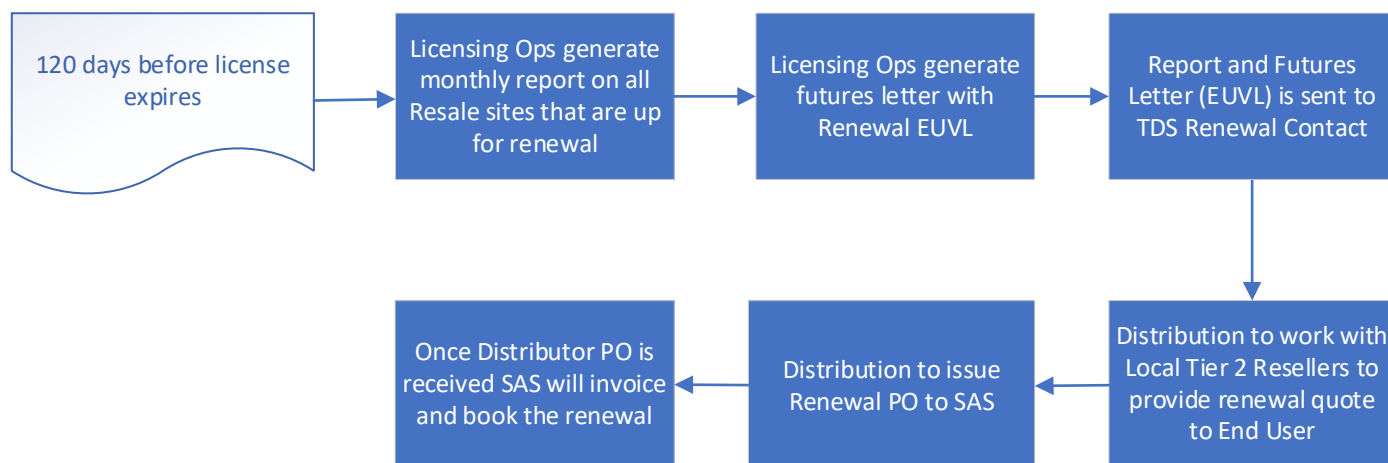
For New Software transactions, Distributor must submit the complete package and all required documents duly executed for SAS to accept and process the transaction. A complete package includes, Distributor Purchase Order, signed Order Form, signed EUVL, approved ORF. Purchase Orders for Multi Year Deals should cover the full amount for all the years in the committed period.

Invoice to Distributor will reflect the applicable fees for the Offering as per the signed UTOF. The invoice is due based on the payment terms as agreed per region.

Upon invoice, SAS will issue a New Software Order with permanent codes to the End User. A copy of the Software Order with permanent codes will be sent to the Distributor and the Tier Two Reseller to confirm that SAS has fulfilled the order.

For multi-year non-cancellable deals, license codes will be issued annually.

RENEWAL PROCESS



For Renewal Software transactions, approximately 120 days prior to the End User license anniversary date, SAS will send “Renewal Notice” to the Distributor. This renewal notice will also include the Renewal EUVL that needs to be signed by the End User.

This advance notice will allow the Distributor to work with the Tier Two Reseller and get renewal confirmation from End User. Once renewal is confirmed, the Distributor will issue a renewal Purchase Order to SAS before the renewal date and SAS will issue the renewal invoice for the next annual period.

Distributor will remit payment to SAS within the prescribed payment terms. Once SAS receives payment for the renewal invoice the renewal codes for the applicable invoice period will be provided to the End User with a copy to Distributor and Tier Two Reseller.

SAS will apply a percentage increase for renewals (“Annual Uplift”). SAS will determine the Annual Uplift at its sole discretion, which may vary each year. For the first annual renewal period following the Initial Annual Period, the Annual Uplift will apply to the Standard Applicable Fees, which will then be used to calculate the Distributor Buy Price with the application of the Total Discount in line with the table set out below. For every subsequent annual renewal period SAS will apply a percentage increase to the prior year’s Renewal Fees.

Example Software Renewal Calculation (US Territory): This example assumes that i) the Annual Uplift to be determined by SAS remains constant at 7% for all the periods listed below, and ii) Standard Applicable Fees are \$100,000,00 and iii) the Offering is Software.

	Applicable Fee (Estimated 7% YTY)	Distributor Discount	Distributor Buy Price
Initial Annual Period	\$100,000	25%	\$75,000
1st Renewal Period	\$107,000	15%	\$90,950
2nd Renewal Period	\$114,490	15%	\$97,317
3rd Renewal Period	\$122,504	15%	\$104,129
4th Renewal Period	\$131,080	15%	\$111,418

TRANSITION OF RENEWALS

There are circumstances under which the Tier Two Reseller may no longer be entitled to manage the End User's renewals. End User renewals may be transitioned from the current Tier Two Reseller to another authorized Tier Two Reseller or back to SAS as direct customer based on any of the following business justifications:

1. The End User has requested to terminate their relationship with the Tier Two Reseller. Reason may include but not limited to acquisitions or mergers that prohibits End User from engaging with the current Tier 2 Reseller.
2. The Reseller is no longer in good credit standing with the Distributor.
3. SAS has opted to terminate their relationship with the Tier Two Reseller.
4. End Customer requests to work with SAS directly.

If such an event occurs, SAS will review with Distributor and internal SAS stakeholders in Sales to review the business justification. Distributor and SAS will agree on the new Tier Two Reseller and engage Operations team to initiate paperwork requirements for the transition and update in the system accordingly.

	Existing Resell Site to New Tier Two Reseller	Existing Resell Site back to SAS direct
Business Justification	The End User has requested to terminate their relationship with the Tier Two Reseller. Reason may include but not limited to acquisitions or mergers that prohibits End User from engaging with the current Tier Two Reseller. The Reseller is no longer in good credit standing with the Distributor. SAS has opted to terminate their relationship with the Tier Two Reseller.	The End User has requested to terminate their relationship with the Tier Two Reseller. Reason may include but not limited to acquisitions or mergers that prohibits End User from engaging with the current Tier Two Reseller or through a Distributor
Distributor Discount	No change	No margin, invoice full to End User
Paperwork Requirement	Amendment to update Tier Two Reseller information in UTOF New Tier Two Reseller Contact Information Form	Amendment to change license to direct
Invoicing	Review with Licensing Ops any outstanding invoice that needs to be canceled/reinvoiced	Review with Licensing Ops any outstanding invoice that needs to be canceled/reinvoiced
System Update	Licensing Ops will update GIDB with new Tier Two Reseller Relationship information	LOPS will update GIDB to remove Reseller Cust Class code, update Software and Invoice Contacts back to End User

Notwithstanding the above, SAS may decide, at its sole discretion: (a) for SAS, its affiliates or a third party to contract directly or indirectly with End User; (b) to contract with Tier Two Reseller to provide the Offering to the End User or (c) to implement any other option SAS deems appropriate.

ONBOARDING NEW TIER TWO RESELLERS

Recruitment of New Tier Two Reseller will be based on agreement between Distributor and SAS. SAS will provide requirements and qualifications to assist Distributor in finding the best match.

All Tier Two Resellers will have to go through SAS Due Diligence and will be required to sign SAS Tier Two Reseller Agreement before SAS can engage with them.

Signing a Tier Two Reseller Agreement will provide the Partner SAS standard Partner Program benefits including access to PartnerNet portal where they can submit Opportunity Registration Form.

All existing SAS Resellers with standard Reseller Agreement will need to sign new Tier Two Reseller Agreements and be onboarded under the Distributor in order to transact under the Distributor Adopter Agreement.

Notwithstanding, SAS is free to appoint any third party as a Tier Two Reseller at its own discretion.

ADDITIONAL RESOURCES

SAS Partner Portal (PartnerNet): <https://partners.sas.com/>

Distributor Policies and Procedures - <https://partners.sas.com/sell-and-showcase/distributor-policies-and-procedures>

Distributor Managed Tier Two Reseller Policies and Procedures - <https://partners.sas.com/sell-and-showcase/distributor-managed-tier-2-reseller-policies-and-procedures>

List of SAS Sales Direct Accounts - <https://partners.sas.com/sell-and-showcase/list-of-sas-sales-direct-accounts>

Eligible Offerings - <https://partners.sas.com/sell-and-showcase/distributor-eligible-offerings>

Distributor Territory and Country Coverage:

TD Synnex: <https://partners.sas.com/sell-and-showcase/distributor-territory-and-country-coverage-td-synnex>

Redington: <https://partners.sas.com/sell-and-showcase/distributor-territory-and-country-coverage-redington>

CONTACTS

SAS Global Channels	Partner Manager – NA	Shelley.Mitchell@sas.com
	Partner Manager – LATAM	Arthur.Lucca@sas.com
	Partner Manager – EMEA	Gianna.Plumridge@sas.com
	Partner Manager – AP	Charlie.Tay@sas.com
	General	partners@sas.com
	Quote Request - NA	Channelquotes.namerica@sas.com
	Quote Request - LATAM	Channelquotes.latam@sas.com
	Quote Request - EMEA	Channelquotes.emea@sas.com
	Quote Request - AP	Channelquotes.ap@sas.com
SAS Licensing Operations	See list for local country contacts	https://support.sas.com/adminservices/contact.html
SAS Training Operations		